

Request Visibility: Published



Request 26-136



Closed



12 of 199

Dates

Received
March 18, 2026 via web

Requester

 Thomas Hammock

 thomas.hammock81@gmail.com

 2392 Canyon Creek Trl, Plumas Lake, CA, 95961

 2292323190

Invoices

No invoices due

Staff assigned

Request

This is a follow-up to my previously submitted California Public Records Act request concerning the Yuba County Sheriff's Office's use of Automated License Plate Reader (ALPR) systems (original request 26-97, submitted 1 Mar 26).

I have received the Flock Safety Master Services Agreement and the ALPR Policy 433 (dated October 20, 2022). I appreciate those productions. However, the following items remain outstanding and are not addressed by the documents provided.

On the citation of Civil Code § 1798.90.55(b):
The restriction cited in your response applies to the sharing of ALPR-captured data, plate reads, detections, and associated records. The items below are administrative governance records, not ALPR data. That statute does not provide a basis for withholding them, and no other exemption has been identified as required by Gov. Code § 7923.010.

The following records remain outstanding:

Departments

Sheriff

Point of contact

Caitlin Smith

1. Authorization and Access Structure.

Records sufficient to show which classifications of personnel are currently authorized to access the Flock Safety ALPR system; the process by which access is granted; the process by which access is revoked; and any training curriculum or completion records required prior to access. Note: ALPR Policy 433.3.1 references that only properly trained sworn officers, crime analysts, and authorized department personnel are permitted access. Records documenting how that authorization is implemented and maintained are administrative records subject to disclosure.

2. Audit Reports and Compliance

Summaries. All internal memoranda, audit reports, or compliance summaries produced pursuant to ALPR Policy 433.8, which requires the Operations Division Captain or Sheriff's designee to conduct and document an audit of ALPR detection browsing inquiries at least once per calendar year. This request covers the period January 1, 2023, to present. These are internal administrative memoranda directed to the Sheriff; they are not ALPR data.

3. Interagency Data Sharing Agreements.

All written agreements, memoranda of understanding, or policies governing access to the Sheriff's Office ALPR system by outside agencies, and any agreements permitting Yuba County personnel to access ALPR systems operated by other agencies. Note: ALPR Policy 433.9 establishes a written request-and-approval process for interagency data sharing. The written requests and approvals generated under that process are administrative records subject to disclosure. The executed Flock Safety contract also enables access to the State Network,

Nationwide Network, Law Enforcement Network, and Community Network; records governing the use of those access tiers are responsive to this request.

4. OMNIA Cooperative Purchasing

Contract. The executed Flock Safety Master Services Agreement references OMNIA Contract #RS250203 as a Special Term incorporated into the agreement. That underlying cooperative purchasing contract has not been produced and is responsive to the original Category 1 request for all contracts and agreements.

If any portion of this request is denied, please identify the specific statutory exemption relied upon for each withheld record individually, as required by Gov. Code § 7923.010.

Show less

Timeline

Documents



Request published

Anyone with access to this request

May 6, 2026, 5:52pm by Staff



Request closed

Anyone with access to this request

All records have been released, and your request has been fulfilled

May 6, 2026, 5:52pm by Staff



Message to requester

Requester + Staff

Dear Mr. Hammock,

This response is to your letter of May 1, 2026. Please see our responses below corresponding to your numbered requests.

Request 1. Authorization and access structure records — including the list of individuals authorized to access and search the Flock system, their agency affiliations, and any records of access granted to non-YCSO personnel.

Response:

This request contains two separate parts to which we respond as follows:

Part One: The list of individuals authorized to access and search the Flock system, their agency affiliations.

Response to Part One: The document you have requested is exempt from disclosure under the public interest exemption on the grounds that any public interest in disclosure is clearly outweighed by the public interest in nondisclosure, because the Sheriff is required to maintain reasonable security procedures and practices to protect ALPR information from unauthorized access as required by Civil Code section 1798.90.51, and disclosure of the names of authorized users could create a security vulnerability for an unauthorized user to try to use this information to gain access to such person's credentials and use them to gain unauthorized access to ALPR data and unlawfully disclose it. (Govt. Code §7922.000; *Times Mirror Co. v. Superior Court* (1991) 53 Cal.3d 1325, 1337-1339.)

Part Two: Any records of access granted to non-YCSO personnel.

Response to Part Two: We have no documents responsive to this request.

Request 2. Audit reports and compliance summaries — including any internal audits or compliance reviews of YCSO's Flock usage.

Response: We previously referred you to the Sheriff's Office ALPR Transparency Portal on the County website. We have no other documents responsive to your request.

We note that your letter referenced compliance documentation under Vehicle Code section 2413. That code section pertains to license plate reader data retained by the Department of the California Highway Patrol. To any extent you are requesting information from the California Highway Patrol, you will need to contact that agency directly.

Request 3. Interagency data sharing agreements — including any memoranda of understanding, contracts, or other agreements governing access to YCSO's Flock data by other agencies, including through Flock's statewide and nationwide network tiers.

Response: We have no documents responsive to this request.

If you have questions regarding this response, you may contact us at (530)749-7565.

Sincerely,

Janet Bender

Yuba County Counsel

May 6, 2026, 5:50pm by Staff



Message from requester

Requester + Staff

Please see the attached formal notice regarding the above-referenced public records request.

May 1, 2026, 5:30pm by the requester



Message from requester

Requester + Staff

Hi!

Thank you for producing the OMNIA contract. Do you have an estimated delivery time for the rest of this request?

April 28, 2026, 6:28pm by the requester



Message to requester

Requester + Staff

Hello,

Thank you for your patience. The OMNIA contract has been made visible.

If you have any questions please do not hesitate to contact our office at (530) 749-7565.

Thank you.

April 16, 2026, 7:50am by Staff



Document(s) released to requester

Requester + Staff

PRAR Response Flock OMNIA Contract.pdf

April 16, 2026, 7:50am by Staff



Message from requester

Requester + Staff

Thank you for your April 10, 2026 response to Request No. 26-136. I write to clarify the scope of my outstanding request and to confirm that two categories of responsive records remain unproduced.

I. The Flock Safety Transparency Portal Does Not Satisfy Request No. 26-136

Your response directs me to the Flock Safety Transparency Portal (transparency.flocksafety.com/yuba-county-ca-so) as potentially responsive to my requests for authorization and access structure documents, audit reports and compliance summaries, and interagency data sharing agreements. With respect, the Transparency Portal does not satisfy these requests.

The Transparency Portal is a vendor-controlled, public-facing product operated by Flock Safety. It is not an agency record. California Vehicle Code § 2413 (SB 34) places audit log obligations on the operator — the Yuba County Sheriff's Office — not on the vendor. The portal does not satisfy those statutory obligations for the following reasons:

1. User identity fields are redacted. The portal omits the name, badge number, or employee ID of the individual who initiated each search. SB 34 requires that each search be attributable to an authorized user.
2. No case-level linkage. The portal contains no case number or investigation reference connecting any search to a specific law enforcement purpose, as SB 34 requires.

3. The portal does not contain the requested authorization, access structure, or interagency sharing records. A search audit log — even a complete one — is not a user authorization list, an access control policy, an audit report, a compliance summary, or a memorandum of understanding governing interagency access.

The records sought in Request No. 26-136 are agency records that YCSO is required by law to create, maintain, and produce. They are not substituted by a vendor's public portal. I respectfully request that YCSO conduct a search for and produce the following records responsive to Request No. 26-136 that remain outstanding:

(a) Authorization and access structure documents: any records identifying personnel authorized to access the Flock Safety ALPR system, including user account lists, access logs, and any agency-level authorization approvals.

(b) Audit reports and compliance summaries: any internal reviews, compliance assessments, or supervisory audits of YCSO's Flock Safety usage, including any documentation prepared in connection with SB 34 (Vehicle Code § 2413) obligations.

(c) Interagency data sharing agreements: any memoranda of understanding, data sharing agreements, or written authorizations governing access to YCSO's Flock Safety data by personnel from agencies other than YCSO.

If YCSO contends that no responsive agency records exist in any of these categories, please state that in writing for the record, identifying each category for which no records are maintained.

If YCSO intends to withhold any responsive records, please identify the specific statutory exemption claimed, the nature of the information withheld, and whether non-exempt portions can be segregated and produced, as required by Government Code § 7922.525. A blanket law enforcement exemption will not satisfy this requirement with respect to user authorization lists, access structure records, or interagency agreements.

II. Status of OMNIA Contract #RS250203

Your response states that the request for OMNIA Contract #RS250203 is still under review and that I will receive additional information soon. I acknowledge this and appreciate the update.

Please note that OMNIA Contract #RS250203 is a public procurement contract through which Yuba County acquired Flock Safety services using public funds. Public procurement contracts are generally subject to disclosure under the CPRA. If YCSO determines that any portion of the contract is exempt from disclosure, I request a written explanation identifying the specific statutory exemption and the nature of the withheld information, as required by Government Code § 7922.525.

I look forward to receiving the County's determination on the OMNIA contract and a substantive response to the outstanding records identified in Section I above.

Please do not hesitate to contact me with any questions.

Respectfully,

Thomas

April 10, 2026, 6:48pm by the requester



Message to requester

Requester + Staff

Good afternoon,

The County has received your follow-up request and has been working to prepare a response.

Thank you for acknowledging receipt of the prior productions of the Flock Safety Master Services Agreement and the ALPR Policy 433 in response to your previous request, 26-97. You sent a follow up request (26-136), which you said addressed items that remain outstanding and were not addressed by the documents provided.

In your follow-up request you indicated you are seeking authorization and access structure documents, audit reports and compliance summaries, and interagency data sharing agreements.

There was a link to the Sheriff's Transparency Portal provided in the response to request 26-97. That link takes you to a page which includes a public search audit which appears that it may be responsive to your second request. If you use this web address, the public search audit is on the right hand side of the page: <https://transparency.flocksafety.com/yuba-county-ca-so>.

You also clarified in your follow up response that you are seeking a copy of OMNIA Contract #RS250203. This request is still under review in that the County is checking whether the responsive document may be disclosed. You will get additional information soon.

If you have any questions please do not hesitate to contact our office at (530) 749-7565.

April 10, 2026, 6:19pm by Staff



Message to requester



Requester + Staff

Hello,

This letter is in response to your request of documents pursuant to the Public Records Act. The purpose of this correspondence is to inform you that the County will require a 14-day extension, pursuant to Government Code section 7922.535, in which to provide its response.

We have begun searching for the additional records you requested, and we will provide those records to you as promptly as possible in accordance with the Public Records Act.

However, your request involves the need to search for, collect, and examine a voluminous amount of separate and distinct records, as well as the need to search for and collect the records from offices that are separate and distinct from this office. Accordingly, pursuant to Government Code section 7922.535, the period of time within which we will

respond to your request is being extended to Click or tap here to enter text.

If you have any questions or concerns, please contact our office at (530) 749-7565.

March 27, 2026, 2:42pm by Staff



Department assignment

Anyone with access to this request

Added: Sheriff.

March 19, 2026, 10:06am by Staff



Message to requester

Requester + Staff

Hello:

Thank you for contacting the County of Yuba. We are in receipt of your Public Records Request. Pursuant to Government Code section 7922.535(a), we anticipate providing you an initial response to your request within 10 days.

Should you have any questions, or if you would like to provide further information or clarification regarding your request, please reply to this email.

March 18, 2026, 8:01pm



Request opened

Anyone with access to this request

Request received via web

March 18, 2026, 8:01pm by the requester